ON THE RUSSIAN RIVER

Odd Fellows Recreation Club

Bylaws

Restated April 5, 2025

Odd Fellows Recreation Club

BYLAWS

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RESTATED BYLAWS
OF
ODD FELLOWS RECREATION CLUB

ARTICLE I
CORPORATION NAME

Section 1. The name of this corporation shall be **ODD FELLOWS RECREATION CLUB. ODD FELLOWS RECREATION CLUB's** sole purpose is to acquire, construct, manage, maintain and care for association property.

ARTICLE II
CORPORATION SEAL

Section 1. The seal of this corporation shall consist of a circle having on its circumference the words **"Odd Fellows Recreation Club, California"** and in the center of said circle the words and figures, to wit: **"Incorporated May 28, 1928."**

ARTICLE III
MEMBERS, MEMBERSHIP REQUIREMENTS AND VOTING RIGHTS

Section 1. Number of Members. The membership of this corporation shall be limited to 205 plus such additional Members as the Board may authorize from time-to- time, so long as the total number of bedrooms on the sites to be occupied by the additional Members does not exceed 100.

Section 2. Eligibility for Membership and Procedure. To be eligible for membership in this Club a person must:

(a) Be a person who has not been convicted of a felony or of a misdemeanor involving moral turpitude.
(b) Be a Member in good standing of either a duly and regularly constituted Lodge of the Independent Order of the Odd Fellows, the Rebekah Assembly, the Free and Accepted Masons, or Order of the Eastern Star, recognized by the applicable Grand Lodges or Grand Chapters.
(c) Be proposed by two Members of this organization who are in good standing and are not seeking to sell or transfer a membership to the proposed Member.
(d) Have arranged for the purchase of an existing membership.
(e) Submit to a credit and background check which will be evaluated with employment information in regard to the applicant's eligibility for membership.
(f) Be at least 18 years of age.

Section 3(a). Application and Procedure for Membership. Said person shall apply by using an application form provided by the Membership Committee. Said application shall provide information regarding applicant's name, employer, residence, and credit rating as well as the requisite fraternal affiliation and the names of the sponsoring Members. Upon receipt of the completed application, the Membership Committee shall conduct an inquiry of said application and submit the results of the inquiry to the Board within sixty (60) days after receipt of the completed application. Thereupon the Board of Directors shall consider such applicant and the information thereon furnished. An affirmative vote of a majority of the Board shall be necessary to elect such applicant as a Member. Upon election into membership by the Board of Directors, the Secretary shall notify the applicant that the membership transfer has been approved, and the applicant to pay to the Secretary the amount of transfer fee, and such dues as may be required. Upon such payment and the issuance or transfer by this Club of a membership certificate to said applicant, then and not otherwise such person shall become a Member of this Club. The Secretary of this Club must concurrently with the purchase of said membership, oversee the entry by the Administrative Assistant the fact of ownership of said membership certificate in the books of the Club. The prospective Member is not allowed to occupy or otherwise modify the premises related to said membership until such application has been approved by the Board of Directors. Violation of this provision will result in a fine to the transferring Member and cancelation of the application.

Section 3(b). Spousal Membership. No person shall have more than one membership. Spouses may each have an individual membership, but neither spouse may have more than one. If each spouse has a separate membership, and one dies having previously designated the surviving spouse as the successor to the decedent's membership, the surviving spouse will have the option of accepting the decedent's membership and placing his or her membership up for transfer. The surviving spouse shall have twelve (12) months to affect such transfer but will only be allowed one vote during that time.

Section 4(a). Voting. Each membership in good standing shall be entitled to a single vote, irrespective of the number of sites it may be entitled to utilize, (See Section 5 hereof.) The Member may give the right to vote to any other person whose name appears on said certificate, provided that only one such person shall be allowed to vote at any meeting of the Members. No member shall be entitled to more than one vote under any circumstance.

Section 4(b). Proxy. A membership in good standing may be represented at any membership meeting by any other membership in good standing, upon the execution of a written proxy or power of attorney to that effect duly signed by the absent Member or that Member's conservator, or the personal representative of the estate, if any, and filed with the Secretary at least three (3) days prior to such meeting. All acts performed under such power shall be held to be the personal acts of the maker of such power.

Section 5. Site Limitation. Each membership may have use of a maximum of no more than one site as shown on plot filed in 1982 with the County of Sonoma, except as sites are currently authorized on now existing membership certificates.

Section 6(a). Certificate of Membership. The certificate of membership herein referred to shall be in substantially the following form:

ODD FELLOWS RECREATION CLUB CERTIFICATE OF MEMBERSHIP

This certifies that _____ is a Member of Odd Fellows Recreation Club, a corporation organized under the laws of the State of California, and incorporated May 28, 1928, and as such Member is entitled to all the benefits and privileges thereof.

The corporation is not organized for profit, and this membership is transferable only with the consent of the Board of Directors.

IN WITNESS WHEREOF, the said corporation has caused this certificate to be signed by its duly authorized officers and to be embossed with the seal of this corporation this _____ day of _____ 20 _____.

ODD FELLOWS RECREATION CLUB

By_____
President

(SEAL)

By_____
Secretary

No._____

Replaces Certificate No. _____ Sites _____

This Certificate of Membership shall be issued only over the signature of the President and Secretary of the corporation, with the official seal of the Club affixed.

Section 6(b). Membership Held in Trust (MHT). The Membership Certificate can be issued showing the Member as a Trustee of his/her Trust as long as the Trust includes wording that states the membership cannot transfer to another individual, entity, or Trustee without first obtaining approval from OFRC in accordance with its Bylaws.

In order for the Membership Certificate to show the Member as a Trustee the Member must submit to OFRC a copy of the page(s) from the Trust showing the required wording restricting transfer of the Membership to a new individual or Trustee and a notarized copy of the Assignment of Interest (if applicable) and Certification of Trust.

Section 7. Associate Memberships. There may be Associate Members on certificates of membership but only the first named on the Certificate shall be the actual Member and the other may not succeed to membership without compliance with all sections of this Article III. This section will not invalidate current Membership Certificates which will continue on the same basis as when issued. Any and all persons whose names are on the Membership Certificate shall meet the fraternal requirements set forth in Article III Section 2(b) hereof except that this requirement shall not be retroactive to any date prior to the adoption of these amended Bylaws. An Associate Member must be at least 18 years of age and must pass the same background check that is required for Members. The cost of the background check will be borne by the Member. This requirement shall not be retroactive to any date prior to the adoption of these amended Bylaws. Any Associate Member who is listed on the Membership certificate may serve as the sole representative of said Membership with regard to any matter concerning participation in the organization, including but not limited to, election to the Board of Directors, serving on committees and voting. The Member must notify the Board of Directors in writing of his or her decision to name any Associate Member as the sole representative of the Membership prior to said Associate Member assuming that role. When so named, said Associate Member shall be the sole representative of the Membership until his or her tenure as representative (e.g., term as a Director or voting at a meeting or on a ballot) is completed. Upon completion of that tenure, the sole representation of the Membership automatically reverts back to the Member of record as stated on the Membership Certificate. Any Associate Member may serve on a committee without being designated the sole representative of the Membership and without being in conflict with the person who is the sole representative of the Membership at the time of serving on the committee.

ARTICLE IV
TRANSFERS AND TERMINATIONS OF MEMBERSHIPS

Section 1(a). Application for a Transfer. All applications for transfer of Certificate of Membership shall be made in writing to the Board of Directors, and no transfer of a Certificate of Membership shall be valid except by written authority of the Board of Directors. A transfer fee, pursuant to Article VII, Section I of these Bylaws, shall be paid to this corporation for the transfer of each Membership.

The transferee and transferor may determine between themselves the pro-ration of said fee. The fee shall be charged except where a transfer is made within the immediate family, whether by gift or devise. (Refer to Article XIV, Section 4 for definition of immediate family Member).

Section 1(b). Resignation. Any Member may at any time resign Membership in the Club by writing to that effect delivered to the Club's Secretary. Such Membership shall then be canceled and revert to the Club and sold. All indebtedness of such Member to the Club shall be a lien against the price of said Membership received on sale.

Section 2(a). Death of Member With Successor. Upon the death of any person holding a Membership Certificate in the Club, the Board of Directors, through its Secretary, as soon as convenient shall request the personal representative or one or more of the heirs of such deceased Member, to cause said Certificate to be delivered to the Club. Upon the delivery of such Certificate or proof of loss by affidavit, the Board of Directors may transfer said Membership to said Member's successor provided by Will or by law. Notwithstanding any other provisions of these Bylaws, the successor, as provided by law, to a Member's structure shall be given preference to that Member's Membership rights in any transfer of the Membership certificate. The successor must meet all of the qualifications per Article III, Section 2. Should there be multiple such successors they shall between among themselves designate, subject to Article III, Section 2, the "successor". If said Certificate shall not be delivered, or proven lost, within twelve (12) months after request, the Board of Directors may, at its option, by resolution, cancel said Membership or dispose of the proceeds of such transfer as hereinafter set forth. If the designated successor, as provided herein, is already listed as the Member of Record on another Membership certificate that Member has the option of being listed as the Member of Record on either of the two Membership certificates, but not on both. A person may be listed as the valid Member of Record on only one Membership at any one time. The second Membership must be made available for transfer pursuant to Article IV, Section 1(a) herein. The successor shall have no more than twelve (12) months to affect such transfer of said Membership. During the twelve-month transfer period allowance, the successor is allowed to enjoy the facilities of said deceased Member, subject to appropriate Board imposed conditions. However, the successor shall not be able to exercise the privilege of voting on the Membership being transferred, in accordance with Article III, Section 4(a).

Section 2(b). Death of Member With No Successor. If there is no "successor", or said successor does not meet the Membership qualifications, the Board of Directors, through its Secretary, shall request that said Certificate be delivered to the Club. Upon the delivery or cancelation of such certificate, the Board of Directors may sell or transfer said Membership and the improvements of the sites assigned to said Membership. The price for the Membership and improvements shall not be less than the appraised value (as determined by a qualified appraiser or by mutual agreement). The appraiser's fee shall be charged against the transferor's estate, and shall be a first charge on the sales price.

All Club Members will be notified of the impending sale and appraised value. Subsequent to notice, bidders meeting the requirements of Article III, Section 2 will have sixty (60) days to submit sealed bids accompanied by a ten percent (10%) cashier's check to the Board for deceased Member's property.

The highest bidder will have (10) days after notification of acceptance to submit cash or cashier's check for the balance of the sale price. If the successful bidder does not submit the required monies within the ten-day period, the next highest bidder will be notified of the required action.

Sale and transfer shall be without the consent of the Member's heirs or personal representative, subject however to the requirements of Probate Law. The proceeds of

such transfer, less the amount of all indebtedness of such deceased Member due to the Club, shall be paid over to those legally entitled.

If such Certificate shall not be delivered within twelve (12) months after request, the Board of Directors may then, at its option, by resolution, cancel said Membership and transfer the same and dispose of the proceeds of sale of the improvements, etc. as above set forth.

Section 2(c). Use of Deceased Member's Site and Club During Estate Settlement. During the time (not to exceed twelve (12) months) required to settle deceased Member's estate, the Board of Directors may permit the "successor" as defined in Section 2(a) above, to enjoy the facilities of said deceased Member, subject to appropriate Board imposed conditions.

Section 3. Expulsion. Any Member may, by vote of two-thirds (2/3) of the entire Board of Directors, be expelled from the Club for failure to conduct himself in a proper manner, or if he conducts himself in a manner detrimental to the interests of the Club, or in a manner which may bring the Club or any of its Members into ill repute, or in a manner that is not consonant with good citizenship, whether within or without the premises of the Club, or for any breach of the Bylaws or rules and regulations of the Club. The disposition of the Member's interests is controlled by Article VII Section 5 and Article V Section 2.

Section 4. Divorce. In the event a divorce occurs which results in an Associate Member or a non-Member receiving custody of the Membership, that person must present a copy of the property settlement to the Board of Directors, verifying custodianship within sixty (60) days of finalization of the divorce. If the person receiving the Membership is not a lodge Member, they have one (1) year to join a qualifying lodge as set forth in Article III, Section 2(b). Any such person must meet the qualifications for Membership set forth in Article III, Section 2 of these Bylaws.

ARTICLE V
EXPULSIONS, SUSPENSIONS, TERMINATIONS AND FINES

Section 1(a). Notice, Hearings, and Rulings. The procedure to be followed on the expulsion, suspensions, terminations and fines of a Member of the Club shall be as follows: Not less than fifteen (15) days before action is taken upon the expulsion of a Member of the Club, the Member shall be furnished with a written statement of the charges against said Member. At that time Member shall be notified of the date, time and place of the hearing of said charges. Said Member shall be at liberty to attend such hearing in person or by Counsel and be heard upon such charges. The hearing shall be conducted by the Board in executive session.

After the hearing, the Board of Directors shall consider the charges and all evidence, and then determine the correctness of such charges. A condensed statement of such proceedings and determination shall be entered in the minutes of the Club, approved by

the Secretary, and the determination thereupon entered shall be conclusive and final upon such matter and not subject to Court review, but may be appealed under Section 3(a) hereof.

Section 1(b). Board of Directors Hearings. At the request of the Board of Directors, any Member of this Club shall appear before the Board of Directors to provide any and all information or testimony necessary for the Board to make determinations under Article IV, Section 3 and this Article V of these Bylaws. Attendance may be required by either written or oral request from said Board of Directors.

Section 1(c). Penalties. The Board of Directors, at any meeting, may impose a fine or penalty, as shall be set by the Board of Directors upon any Member of the Club for any infraction or violation of the Bylaws or of the rules and regulations of the Club, subject to Article IV, Section 3 of these Bylaws.

Section 2. Expulsion, Suspension and Termination During Appeal. A Member expelled or terminated from the Club, as provided by these Bylaws, forfeits all the rights of a Member upon termination of appellate proceedings provided in Section 3(a) of this Article. The Board in its discretion may suspend said Member pending appeal. Upon expulsion the title to said Membership shall vest in the Club.

Section 3(a). Method of Appeal. Appeals from the action of the Board of Directors may be taken by written request of such Member filed with the Board of Directors within thirty (30) days after the date of notice to the Member of such expulsion. Notice shall be deemed complete on either personal service or mailing thereof, to said Member. All appeals shall be heard by the general Membership of the Club at the next Annual or Semi-Annual meeting, or special meeting called for that purpose. The action taken by the Club on said appeal shall be final and not subject to Court review.

Section 3(b). Procedure on Appeal. The facts and reasons for the Board's ruling shall be read to the Members by the Club's Presiding Officer. A copy of the "facts" shall be sent to the expelled Member who may present his written position of inaccuracy of facts to the Board. The facts as read to the Membership shall include the written reply of the Member and Board's rebuttal thereto. A two-thirds (2/3) vote of all Members of the Club shall be required to overrule the Board's action.

ARTICLE VI
MEMBERSHIP RIGHTS AND OBLIGATIONS

Section 1. Rights. The election to Membership in this Club, together with the issuance or transfer of a Certificate of Membership herein, shall entitle the immediate family of any such newly elected Member to the privileges of this Club with the approval of said Member. The rights of any family Member may be terminated or suspended by the Board of Directors by majority vote and said person may be barred from the Park or any parts thereof.

Section 2. Dues, Fees, Assessments, Fines, Etc. Each Member of this Club must pay the Membership fee required by these Bylaws and all dues, debts incurred, assessments, charges, impositions and fines fixed, imposed, levied or assessed from time to time.

Section 3. Consent to Bylaws and Rules. By acceptance of a Membership in this Club, a Member consents to these Bylaws and agrees to conform to and abide by said Bylaws in every respect, and all amendments of changes to said Bylaws and Rules now or hereafter adopted and all rules and regulations promulgated by said Board of Directors.

Section 4. Trees. Any tree to be cut that is over 6" in diameter requires the approval of the Vegetation Management Committee in accordance with their current policy.

Section 5(a). Property Maintenance. Each Member shall properly maintain buildings and the site allocated to said Member. Where the Board has determined (by a qualified building inspector or contractor) that a Member's structure either constitutes a fire hazard or is of unsound structural condition, the Board may direct said Member to correct the condition within a six-month period. If after six months satisfactory action has not been taken to correct aforesaid condition(s), the Board shall have the authority to cancel the Membership pursuant to Article V hereof and to sell the same as prescribed in Article VII Section 4(a) hereof. All structures may be forthwith demolished at the Member's expense where the same are a clear and present danger to the Club or Members thereof. The Board of Directors, through its Secretary, shall request that said Member's Certificate be delivered to the Club.

Section 5(b). Changes to Building Exterior. Prior to construction of any new addition or exterior remodeling of any structure on a site, the Member to whom the site is assigned must obtain the written consent of the Board for such addition or remodeling project. The Club rules may provide a procedure for requesting such approval and architectural and aesthetic standards applicable to any proposed addition or remodeling project. Exterior alteration, remodeling, and addition work shall be completed prior to expiration of building permit issued by County of Sonoma (or within 18 months of OFRC authorization to commence construction if no permit is required). Failure to complete said work prior to expiration of building permit or 18 month time frame may subject a Member to a fine pursuant to the Club's schedule of fines.

Section 5(c). Alterations and Remodeling Requiring a Permit. Member Construction Proposal shall be submitted to the Board for any alterations or remodeling **requiring a permit**. The purpose of this process is to facilitate the safe fair development of Member sites, expedite the process of obtaining permits, and indemnify the Club for work performed at Members' sites. The Board shall notify Member if Construction Proposal is accepted or rejected. If rejected, an explanation will be provided, and the Member may appeal or make necessary revisions and resubmit. (Note: rejections would be based solely on things over which the Club has jurisdiction, such as site boundaries and number of bedrooms.)

Section 5(d). Unauthorized/Illegal Construction. If a Member commences with unauthorized or illegal construction to a site, said Member may be required to halt the work, obtain proper approval and permits as required, and/or remove the unauthorized changes at that Member's own expense.

Section 5(e). Maintenance/Construction Member Liability. Member assumes sole liability and OFRC assumes no liability for any work performed at Member's site. Member liability includes, and is not limited to, injury or illness that may occur as a result of work performed on Member's site or within the confines of OFRC.

Section 6. Work Weekend. Each Member shall participate in the work weekends, as the Board of Directors deems reasonable and necessary for the preservation and maintenance of the Club's properties of OFRC.

Section 7. Lack of Good Standing. A Membership not in good standing, pursuant to the provisions of Section 4 of Article VII, is denied all rights and privileges of a Membership in the Odd Fellows Recreation Club, including without limitation, the ability to sponsor a potential Member or guest, vote, be nominated for office or be a director of the Club. All persons listed on the Membership Certificate shall have a limited right of entry into the park solely for the purpose of access to and from his or her site. Such persons shall park vehicles only on the Membership's site.

Section 8. Indemnification of Club. In the event that this Club or any of the directors and officers or other Members thereof acting on behalf of this Club, shall be subjected to any legal action as a result of the conduct of any Member or guests of any Members, the Member of the Club who is responsible or has permitted participation by a guest in this Club's activities or premises, shall hold this Park, its officers, directors and personnel acting on behalf of the Park harmless and free of any and all expense including any attorney's fees which may be incurred as a result of said actions.

Section 9. Rental of Members' Cabins. Memberships are not allowed to enter into rental or lease agreements for their cabins in the Park. Only immediate family members and friends are allowed to stay in Member's cabin. (Refer to Article XIV, Section 4 for definition of "immediate family member").

Section 10. Business Use of Members' Sites. Members' sites shall be used exclusively for residential purposes. No business of any kind shall be established, maintained, operated, permitted or conducted except home offices that do not require or allow members of the general public access to the Club's grounds.

Section 11. Loss of Good Standing in Affiliated Fraternal Orders. Club Members and Associate Members are required to maintain affiliated lodge membership and to provide proof of such membership annually. Copies of Members' and Associate Members' current lodge cards are due on January 1st of each year and delinquent after March 31st. If the Member's lodge card has not been received by March 31, the Secretary of the Club will notify the Member that the Membership is no longer in good standing. If

the Member does not provide the lodge card, or other evidence of membership in good standing in an affiliated fraternal organization, within 30 days of the date of the notice, the Board may act to terminate the Membership. If the Associate Member's lodge card has not been received by March 31, the Secretary of the Club will notify the Member. If, within 30 days of the date of that notice, the Secretary has not received the Associate Member's lodge card, or other evidence of membership in good standing in an affiliated fraternal organization, the Member shall surrender their Certificate of Membership, the Associate Member will be removed from the Certificate of Membership, and the Member will be charged $100 for the issuance of an updated Certificate of Membership.

ARTICLE VII
DUES AND MEMBERSHIP FEES

Section 1. Transfer Fee. The fee to the Club shall be not less than $15,000.00, subject to Article IV, Section 1(a) of these Bylaws.

Section 2. Dues. The Board of Directors shall recommend dues changes when deemed necessary for Club purposes. Before dues become effective, they must become ratified by a majority vote by paper ballot distributed at, executed in-person or by proxy-holder, of the Members present personally or by proxy at a Semi-Annual or Annual Membership meeting or a special meeting called for that purpose. Dues so set shall continue from year to year until revised as herein provided. As with assessments, notice of the specific revision as a separate and distinct revision shall be mailed by U.S. mail to all Members fourteen (14) days in advance of such meeting. The Board of Directors shall propose the least amount of revision considered by it to be reasonable, with the option of adjusting that revision for Club purposes at the next Semi-Annual or Annual Membership meeting or special meeting called for that purpose by an assessment proposal as herein provided by Section 3 of this Article.

Section 2(a). Fines. The Board shall adopt and distribute to the Members a schedule of fines for violation of the Bylaws or the rules of Odd Fellows Recreation Club. The schedule of fines may include an appropriate fine for nonparticipation in work weekends, among other things.

Section 2(b). Improvement Fund. The Board of Directors shall recommend the amount to be assessed for Club needed improvements and equipment over and beyond normal maintenance. Before this assessment can become effective it must be approved by a majority vote of the Members present or by proxy at a Semi-Annual or Annual Membership meeting or special meeting called for that purpose. Annual allocation of the Improvement Fund must be ratified by a majority vote of the Members present, personally, or by proxy at the Semi-Annual meeting or Annual meeting called for that purpose. Notice of the specific recommendation set out as a separate and distinct proposal shall be mailed by U.S. Mail, to all Members fourteen (14) days in advance of such meeting.

Section 3. Assessments. Assessments not otherwise provided for in these Bylaws may be levied by a majority vote by paper ballot distributed at, and executed in person or by proxy-holder, of the Members of the Club present, in person, or by proxy at a regular or special meeting called for that purpose. Notice of the specific proposal shall be mailed by U.S. Mail, to all Members fourteen (14) days in advance of such meeting. If a quorum of the Members is not present, then said meeting may adjourn from day to day or from time to time until a quorum is present. If a majority of the Members present shall fail to vote, then said meeting may adjourn from day to day or from time to time until a proper vote has been cast.

Section 4. Dues, Assessments, Fines, Penalties and Other Charges, and Loss of Good Standing. Dues, assessments, fines, penalties, and other charges not paid within ninety (90) days of imposition shall be subject to a twenty percent (20%) penalty and the Membership liable therefore shall cease to be in good standing. Notice of the same must be given by the Secretary to the Member by regular mail.

Any Membership not making full payment within one month after notice, shall, upon a vote of the Board of Directors at a regular meeting, cease to have Membership in this Club, and the Membership Certificate may be canceled. On good cause shown, the Board of Directors shall have the power to restore any Membership which may by such default have been lost and reissue a Certificate of Membership.

A Membership whose dues, assessments, fines, penalties, and other charges are delinquent, is deemed not In good standing and shall remain as such until all dues, assessments, fines, penalties, and other charges are paid in full. Forfeiture of good standing may, for good or equitable cause, be delayed, postponed or voided by majority vote of the Board of Directors.

Section 5. Sale of Structures. When a Membership Certificate has been canceled for non-payment of dues, assessments, or any other charges levied by the Club, and the Member has a dwelling or other structure on any site on Club property, the Board of Directors shall have the right to sell same in order to collect the amount of delinquent dues, assessments, or other charges. The Board of Directors shall make a reasonable effort to obtain the best obtainable price, using a certified appraiser when necessary. The Board of Directors shall have the right to take from the proceeds of any such sale any amounts that may be due the Club for delinquent dues, assessments, and other charges, plus the regular transfer fee. Any balance of the proceeds of said transfer remaining after making the above deductions shall be disbursed as provided in Article IV, Section 2(a). Sale shall be conducted by the procedures set forth in Article IV Section 2(b).

ARTICLE VIII
MEMBERSHIP MEETINGS

Section 1(a). Annual Membership Meeting. The Annual meeting of the Members of this Club shall be held on the first Monday in September of each year at 10:00 a.m. Said

meeting shall be held at the Odd Fellows Recreation Club grounds, Guerneville, California. Meeting date, time, or location may be changed for cause by the Board of Directors. Notice of the time and place of such meeting shall be given by the Secretary by mailing by U.S. Mail of a printed or written notice of said time and place to each Member not less than fourteen (14) days prior to the date of such meeting. In the event of an emergency (fire, flood, pandemic, etc.), the Board can call for a vote electronically and/or by mail.

Section 1(b). Semi-Annual Membership Meeting. A Semi-Annual meeting of the Members of the Club shall be held each year on the third Saturday in April at 10:00 a.m. at the Odd Fellows Recreation Club grounds for the purpose of nominating candidates for the Board of Directors for the ensuing year and for the conduct of regular business that may be brought up at the meeting. Meeting date, time, or location may be changed for cause, including conflict with a legal or religious holiday, by the Board of Directors. Notice of the time and place of such meeting shall be given by the Secretary by mailing by U.S. Mail of a printed or written notice of said time and place to each Member not less than fourteen (14) days prior to the date of such meeting. In the event of an emergency (fire, flood, pandemic, etc.), the Board can call for a vote electronically and/or by mail.

Section 1(c). Financial Review Committee. At the Semi-Annual meeting, five (5) Members of the Club shall be elected as a Financial Review Committee, whose duty it shall be to examine the books, records, reports, and financial statements of the corporation and to submit their report thereon at the Annual meeting. Financial Review Committee may employ a duly registered public accountant to perform those duties, the cost to be the costs prevailing in the community.

Should a vacancy occur on this committee the remaining Members of said committee must fill said vacancy. Said committee shall select its chairman from within said committee.

Section 1(d). Semi-Annual Meeting Agenda. The agenda for the Semi-Annual meeting shall be as follows:

(i) Roll Call of Members and determination of whether a quorum is present in person or in proxy.
(ii) Minutes of last previous meeting. (Either to be read or reading waived by appropriate motion.)
(iii) Reports of officers.
(iv) Reports of standing committees.
(v) Reports of special committees.
(vi) Nomination of candidates for the Board of Directors.
(vii) Appointment of Election Examiners.
(viii) Election of Financial Review Committee.
(ix) Ratification of Improvement Fund.
(x) Transaction of any regular business.
(xi) Adjournment.

Section 2. Special Meetings. Special meetings of Members of the Club may be called by the President or by a majority of seated voting Directors. Notice shall be mailed by U.S. Mail to all Members at least fourteen (14) days prior to such special meeting. Notice shall specify the time, place and purpose of such meeting. The Board of Directors must call a special meeting of the Members of the Club whenever requested in writing, over the signature of fifty Members. In the event of an emergency (fire, flood, pandemic, etc.), the Board can call for a vote electronically and/or by mail.

Section 3. Quorum. Fifty Members in good standing present in person or by proxy, at any Membership meeting of the Club shall constitute a quorum for the transaction of business. If less than the quorum is present, the meeting may be adjourned from time to time until a quorum is present. No business having directly or indirectly for its object or purpose, the sale, leasing, mortgaging, exchanging, or other disposition or encumbrance of any of the real property of the Club, or the sale, assignment, mortgage, pledge, or hypothecation of any contract owned by the Club, affecting any real property of the Club shall be transacted at any Membership meeting of the Club unless there shall be present in person or by proxy, not less than two thirds (2/3) of the Club Members in good standing.

Section 4. Annual Meeting Agenda. The agenda for the Annual meeting shall be as follows:

(a) Roll call of Members, and determination of whether a quorum is present in person or by proxy.
(b) Minutes of last previous meeting. (Either to be read or reading waived by appropriate motion.)
(c) Reports of officers.
(d) Reports of standing committees.
(e) Reports of special committees.
(f) Transaction of any regular business.
(g) Ratification of Improvement Fund.
(h) Election of Directors.
(i) Adjournment.

Section 5. Parliamentary Procedure. The rules contained in the latest edition of Robert's Rules of Order shall govern the Corporation in all cases not inconsistent with these Bylaws or any rules of the Club as then in effect.

Section 6. Video Conferencing, Electronic Meetings, Virtual Meetings. The Board of Directors may choose to conduct Membership and Board meetings using electronic, video, or virtual meetings and develop the rules for usage

ARTICLE IX
BOARD OF DIRECTORS

Section 1. Number of Directors. The Board of Directors shall consist of seven (7) Members, or eligible voters as defined in Article XIV Section 2 hereof, in good standing

and shall constitute the ruling and governing body of this corporation for all purposes and shall prescribe rules not inconsistent with the Articles of Incorporation and Bylaws or with laws of the State of California regarding the affairs and conduct of the Club. A majority of seated voting Board Members shall be present at any Directors' meeting for transaction of business. When the Board needs help with special projects, grant writing, riverbank failures, positions not filled by voting Directors, etc., they may appoint Non-Voting Executive Directors who will serve at the pleasure of the Board of Directors.

Section 2a. Qualification of Directors and Term Limit. Any Member, or Associate Member designated by the Member as his/her representative, who is on a Certificate of Membership that is currently in good standing at the nomination date and which person has met the requirements set forth in Article III, Sections 2(a), (b) and (e) hereof prior to June 1, 1995, shall be eligible to run for Director. Said person must remain on a Certificate of Membership that has been continuously in good standing from the date of nomination through the term served as Director. No person shall be eligible to run for Director who is listed on a Membership Certificate that is currently not in good standing or has been declared not in good standing at any time three (3) years prior to nomination date. No Member shall serve as a Director for more than two (2) consecutive terms.

Section 2(b). **Transition Clause.** The Board is elected at the September Annual Meeting. All Directors shall be elected for two (2) year terms. Any tie vote shall be resolved as set forth in Section 5 below. During the month from the September Annual Meeting at which new Board Members have been elected, until the October Executive Session of the Board of Directors, all email communications and meetings will include both the outgoing and incoming Board Members. Also, during this period outgoing Board Members will transfer all critical information to the incoming Board Members. This includes financial reports, statements, contracts, bonds, and other instructions. Outgoing Board Members will act in an advisory capacity only for this one-month transition. Outgoing Treasurer shall retain the authority to handle banking transactions until the incoming Treasurer is authorized by the bank to do so.

Section 3. Vacancies on Board. Should a vacancy occur on the Board of Directors, the remaining Directors may fill said vacancy with an existing Director assuming the duties for the unexpired term. Should the Board of Directors decide to appoint a Member to fill the vacancy, the appointment shall be pursuant to the qualifications stated in Section 2(a) above.

Section 4. Nominations and Elections of Directors. Not later than the first Saturday in August of each year, the names of all qualified persons nominated for Director, either at the Semi-Annual meeting or by petition, and who have not filed a written declination with the Secretary, shall be placed on a ballot as hereinafter provided and mailed by U.S. Mail to each and every Member of the Club. One week prior to the day upon which the annual meeting is to be held, there shall be provided by the Club a ballot box, which shall be conveniently placed at the principal place of business of the Club. The Election Examiners shall be provided with a certified list of Members in good standing. Every ballot shall be checked against this list. Members desirous of voting shall designate on their

ballot the names of their choice for Directors, not to exceed the number to be elected that year. Said ballot shall be placed in a sealed ballot envelope and enclosed in another envelope with postage thereon, addressed to the Election Examiners of the Club, at ODD FELLOWS RECREATION CLUB, 13522 Riverside Drive, Guerneville, California, 95446, **and there shall be plainly endorsed on said envelope the name of the Member whose ballot is thus forwarded.**

Upon receipt of the same, the Administrative Assistant shall immediately deposit the ballot envelope, with the seal unbroken, in the ballot box, and the same shall be deemed the vote of such Member for all purposes as if said ballot had been personally deposited by the Member in the ballot box. At the hour of 6 o'clock p.m. on the day before the Annual meeting, the voting shall cease. The Chair of the Semi-Annual meeting shall appoint three persons from among the Club Members as Election Examiners, whose duty it shall be to examine ballots to determine the good standing of the Member voting and eligibility of the person designated as potential Director and to tally the votes and report the result of such examination to the Annual meeting. If such report shall show the election was fairly and regularly held, it shall be the duty of the Chair of the meeting to cause to be announced the names of the eligible persons who have received the highest number of votes required to fill the position of Directors at said meeting, and they shall be declared elected as such Directors. The number of votes cast for each Director to be made available to any Member by the Board Secretary upon private request. If, as a result of the examination and report of the Examiners, it shall appear that substantial errors have occurred in said election or that said election was not fairly and legally held, the Members present in person or by proxy shall by new ballot vote for the persons previously nominated. Notwithstanding the foregoing, no candidate receiving less than 10% of the total number of votes cast shall be elected to the Board. If less candidates than the number of vacancies on the Board to be filled by the election receive more than 10% of the votes cast, then only those candidates receiving more than 10% of the vote shall be elected and the remaining Board positions shall be deemed vacant.

Nothing herein contained shall preclude the placing in nomination other eligible persons to be voted upon for Directors, but all such nominations must be in writing, signed by ten or more persons eligible to vote, and filed with the Secretary at least sixty (60) days prior to such Annual meeting.

Section 5. Tie Vote. In the event that the number of votes for any candidate for Membership on the Board of Directors equals the votes cast in favor of any one or more of the other candidates and which candidates but for said tie would serve upon the Board, the tie shall be broken by lot or by any method decided upon by the newly elected Board which gives each candidate an equal chance of winning.

Section 6. Election of Officers. Immediately after election the outgoing and incoming Directors shall meet and the incoming Directors shall elect the following officers from the Board's constituent Members: a President, a Vice President, a Secretary, and a Treasurer. They shall also designate a depository into which the funds of the Club shall be placed. The outgoing Secretary shall preside at the meeting until a new President is

elected, at which time the newly elected President shall chair the remainder of the meeting. The incoming Board will also set the meeting calendar for the coming year (October through September).

Section 7. Committees. The Board of Directors may create such committees as, in its judgment, may be necessary for properly conducting the affairs of the Club. Each of these committees may be composed of as many Members as the Board may deem necessary.

Section 8. Authority to Hire and Fire. The Board of Directors shall have the authority to hire such employees, including a manager as may be necessary for the purpose of conducting the affairs of the Club, and to fix their compensation and duration of their employment agreement. Such employees shall hold their respective positions as provided by the terms of their employment contracts.

In the extended absence of any employee or contracted service, or the vacancy of the position, the Board of Directors may appoint a Board Member or another Club Member to perform the duties of that role until a permanent replacement is hired.

Section 9. Compensation. No compensation (with the exception of work weekend credits) shall be allowed to any Members of the Board of Directors for services, nor to any other officer of the Club. However, a non-voting Executive Director appointee such as the Secretary, Treasurer, or Member with the right skill set for certain positions, may be allowed such compensation for the discharge of their respective duties as the Board deems just and reasonable.

Section 10. Incurring Indebtedness. Subject to the laws of the State of California, the Board of Directors of this Club may incur indebtedness when it determines that it is in the best interests of the Club to do so in order to deal with emergency situations.

Section 11. Adverse Interest. No Member or eligible voter, employee, officer or Director of this corporation shall transact any business with the corporation whereby he may directly or indirectly receive a benefit from the corporation without the knowledge and approval of the Board of Directors.

Section 12. Auxiliary Organizations. Any organization wishing to operate as an auxiliary to or a subsidiary of Odd Fellows Recreation Club must have Board approval. Any activity by said organizations, which would alter landscape, buildings, or general operations of Odd Fellows Recreation Club, must have Board approval.
Additionally, all funds received and disbursed by said organizations must be recorded in a manner acceptable to the Treasurer of Odd Fellows Recreation Club, and must be submitted to said Treasurer for inclusion in the Odd Fellows Recreation Club income and expense report. Information must be submitted for annual reports by January 10 for the previous year.

Section 13. Bonding. The Board of Directors may require a sufficient surety bond for the manager, cabins and campgrounds reservationist, President, Secretary and Treasurer, at the expense of the Club.

Section 14. General Duties and Powers of the Board. Subject to the limitations set forth in any of the Club's governing documents or California law relating to such actions that require Member approval, the business and affairs of the Club shall be vested in and exercised by the Board of Directors. Subject to any limitations set forth in the governing documents or California law, the Board may delegate the management of the activities of the Club to any person or persons, management company or committee, provided that notwithstanding such delegation the activities and affairs of the Club shall continue to be exercised under the ultimate direction of the Board. The Board shall use all reasonable efforts to enforce the provisions of these Bylaws and the other governing documents of the Club and shall take appropriate disciplinary measures against those Members who violate such provisions.

Section 15(a). Authority of Board to Remove Directors. The Board of Directors shall have the power and authority to remove a Director and declare his or her office vacant if said Director:

(i) has been declared of unsound mind by a final order of a court;
(ii) has been convicted of a felony;
(iii) has been found by a final order or judgment of any court to have breached any duty under Corporations Code Sections 7233-7236 (relating to the standards of conduct of Directors);
(iv) fails to maintain the Director's "good standing" status for a period of ninety (90) consecutive days or longer;
(v) fails to attend three (3) consecutive regular meetings of the Board of Directors that have been duly noticed in accordance with California law; and/or**;**
(vi) Repeatedly fails and/or refuses to vote (and/or abstain from voting) on matters before the Board of Directors.

Section 15(b). Authority of Members to Remove Directors. Except as otherwise provided in Section 15(a) or by California law, a Director may be removed from office prior to expiration of his or her term only by the affirmative vote of a majority of the Members represented and voting at a duly held meeting at which a quorum is present, or by a majority of written ballots pursuant to Article IX, Section 4 so long as the total number of ballots received meets or exceeds the Club's quorum requirement.

Section 15(c). Authority of Board to Sponsor Guests. The Board may sponsor fraternal organizations and vendors to use or rent Club facilities, with the Club assuming liability and financial responsibility for these guests, while adhering to all member guidelines and procedures governing guest sponsorship

Section 16. Not-for-Profit Foundation. The Board of Directors may create a Not-For-Profit Foundation with its own Charter and Foundation Directors.

ARTICLE X
FISCAL YEAR

Section 1. The Club's fiscal year shall be from January 1st to December 31st, inclusive.

ARTICLE XI
DUTIES OF OFFICERS

Section 1. President. It shall be the duty of the President to preside at all meetings of the Club and the Board of Directors, to appoint all committees, subject to the approval of the Board of Directors, to remove any Members of such committees with cause, to see that the Bylaws and such rules and regulations as may be adopted by the Board of Directors are enforced, to call such meetings as are herein provided to be called by the President, to have Annual meetings and to make a written report covering the progress of the Club during the previous fiscal year. He or she shall be an ex-officio Member of all committees.

Section 2. Execution of Contracts. The President and the Secretary shall sign and maintain all contracts, bonds, and other instruments in writing, which have been first approved by the Board of Directors. All checks shall be signed by voting Directors of the Club.

Section 3. Presiding Officer in Absence of President. In the absence of the President, the Vice-President shall preside at all meetings of the Club and Board of Directors, and otherwise perform the duties of the President. If both the President and Vice President are absent from such meetings, the Secretary shall call the meeting to order, and a temporary chairman shall be elected.

Section 4. Secretary. The Secretary shall have general charge of the Club's ledgers appertaining to Memberships and sites. The Secretary will coordinate with the Club's Administrative Assistant (AA) for the following tasks performed by the AA: keep a record of the proceedings of the Club and of the Board of Directors and keep the minutes of all Director's and Membership meetings, give notice of all meetings where notice is required and maintain the official correspondence of the Club, affix the corporate seal of the Club to such documents as these Bylaws or as the Board of Directors shall direct. The Secretary shall perform such other duties as the Board of Directors shall from time to time require.

Section 5. Treasurer. The Treasurer shall have general charge of the books and accounts of the Club. The Treasurer shall coordinate with the bookkeeper to have general oversight of the books and accounts of the Club, provide a monthly set of Financial Statements, keep the Board of Directors informed as to the status of the budgets, and shall notify the Board whenever the budget is in serious danger of being exceeded or is exceeded. The Treasurer shall provide a Budget Status Report to the

Members at the Semi-Annual and Annual Meetings. The Treasurer shall be responsible for reviewing all corporate tax returns, with input from the Finance Committee, and presenting to the Board of Directors for approval prior to electronically submitting. The Treasurer shall provide to the Members a report of the Club's annual budget, subsequent to recommendations by the Finance Committee and approval by the Board of Directors. The Treasurer shall also provide the Members with an annual report on the Club's expenses for wages. The Treasurer shall perform such other duties as the Board of Directors requires from time to time.

ARTICLE XII
LIQUIDATION

Section 1. Liquidation. Upon liquidation of this Club, after the payment of all Club debts, its properties shall be sold and converted into money. All remaining monies shall be distributed equally among those who are Members in good standing as of the date of liquidation.

ARTICLE XIII
PROTECTION OF CLUB PROPERTY

Section 1. Protection of Club Property. None of the property of the Club of any kind shall be removed from the Club premises, nor be mutilated or destroyed, without the consent of a majority of the Members of the Board of Directors.

ARTICLE XIV
DEFINITIONS

Section 1. Club. The term Club as used in these Bylaws means ODD FELLOWS RECREATION CLUB, a corporation. All words used herein shall be construed to include the masculine, feminine and neutral genders.

Section 2. Member. Unless otherwise indicated specifically, "Member" shall mean "in good standing".

Section 3. Eligible Voter. "Eligible Voter" shall mean any single person named on a Certificate of Membership.

Section 4. Immediate Family Member. Immediate family members are to be defined only as spouse, children, grandchildren, parents, grandparents, brothers, sisters, nieces and nephews of the Member.

ARTICLE XV

AMENDMENTS TO BYLAWS

Section 1. Proposals for Amendments to Bylaws. Amendment of these Bylaws may be proposed by a majority of the Board of Directors or by a typewritten petition to the Board of Directors and filed with the Secretary. The petition must be signed by at least twenty-five Members, who shall each certify thereby that they have received a typewritten copy of such proposed amendment. The Board of Directors shall cause such proposed amendment to be placed on a ballot to be voted upon at the next scheduled meeting of the Membership, unless the next Membership meeting is scheduled to be held less than sixty (60) days after the first regularly scheduled meeting of the Board of Director following the receipt of such proposal by the Secretary, in which event the proposal shall be placed on the ballot of the next Membership meeting thereafter.

The Board of Directors may indicate upon the ballot its recommendation for or against such change.

Section 2. Adoption of Amendment of Bylaws. These Bylaws may be amended by vote of a majority of Members in good standing present at an Annual or Semi-Annual meeting of the Club or a meeting specially called for that purpose.

ARTICLE XVI
NOTICES

Section 1. Notices. Notice of any kind, required to be given to any Member by these Bylaws, shall be conclusively deemed to have been given by personal hand delivery (unless otherwise provided) or by deposit in the United States mail, enclosed in a sealed envelope addressed to the Member at the last address given by such Member as shown by the Books of the Club, postage prepaid. It shall be the responsibility of each Member to notify the Secretary of any and all address changes of the Member. If the address of any Member is not shown by the Books of The Club, notice mailed to the Member's address last known to the Secretary, whether to the Member's residence or principal place of business, shall be deemed properly given.

ARTICLE XVII
PROHIBITION OF DISCRIMINATION

Section 1. The Club shall be an equal opportunity organization, and shall not discriminate based on Federal, State, County and Local laws on the basis of race, color, religion, sex, age, familial status, national origin or disability, in its programs, activities, or hiring practices. See Member Rules for more information.

CERTIFICATION

Section 1. I, the undersigned, the duly elected and acting Secretary of Odd Fellows Recreation Club, a California corporation, do hereby certify, under penalty of perjury under the laws of the State of California, that the within and foregoing Restated Bylaws constitute the complete Bylaws of said Club, and were approved and duly adopted on April 5, 2025**,** by the requisite majority of Members pursuant to Article XV, Section 2 of the Restated Bylaws and by a majority of the Board of Directors of the Club.

David Lefson

David Lefson, Secretary
OFRC Board of Directors